

Court no later than five (5) days from the date of this hearing.

17. 9:01 AM CASE NUMBER: C23-02459

CASE NAME: KYLE GARDNER VS. MARIO MADRIGAL

***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF KYLE R. GARDNER TO APPEAR AT PHYSICAL INDEPENDENT MEDICAL EXAMINATION WITH STEVEN MCINTIRE, MD
FILED BY: MADRIGAL, MARIO VALENCIA**

TENTATIVE RULING:

Summary

Defendant Mario Valencia Madrigal ("Defendant") Motion to Compel Plaintiff Kyle Gardner ("Plaintiff") to attend and appear at an Independent Medical Examination ("IME") with Steven McIntire, MD for a neurological examination is **granted** in part and **denied** in part as set forth herein.

Background

This case involves a motor vehicle accident that occurred on October 13, 2021 wherein a motorcycle operated by Plaintiff Kyle R. Gardner, and another vehicle driven by Defendant Mario O Valencia Madrigal collided. As a result of the incident, Plaintiff reported experiencing pain in his left shoulder, elbow, wrist, knee, hip, and ankle, as well as a laceration to his left shin. Plaintiff is also claiming he sustained a concussion, resulting in symptoms such as confusion, forgetfulness, dizziness, and headaches. Plaintiff asserts a claim for damages related to these neurological injuries.

On May 30, 2025, Defendant served Notice of an IME for Plaintiff with Steven McIntire, M.D., who is a neurologist. Plaintiff, through counsel, objected to the examination. Counsel met and conferred.

On October 22, 2025, Defendant Mario Valencia Madrigal ("Defendant") filed this Motion to Compel Plaintiff Kyle Gardner ("Plaintiff") to attend and appear at an Independent Medical Examination with Steven McIntire, MD for a neurological examination. The Motion is supported by a Notice, Memorandum of Points and Authorities, Declaration of Dr. McIntire and Counsel Callie Tyler.

Defendant seeks to compel a neurological examination of Plaintiff pursuant to Cal. Code of Civ. Proc. § 2032.310(a). Plaintiff, who was allegedly injured in a motor vehicle accident, claims that he sustained a concussion, resulting in symptoms such as "confusion, forgetfulness, dizziness and headaches." After meeting and conferring over objections, the following issues remain to be resolved: (1) Plaintiff's objection to Dr. McIntire asking and taking a detailed medical history of Plaintiff regarding Plaintiff's injuries; and (2) the request that both parties may audio record under the condition that Plaintiff be allowed to videotape the examination.

On January 29, 2026, Plaintiff filed an opposition to the Motion, self-styled, "Opposition to Defendant's Motion to Compel Impermissible Communication with Represented Party ." Plaintiff objects to conducting an "oral examination" or "oral history," asserting that such examination is not contemplated by the Discovery Act in an independent medical examination, which, in this case is a mental examination.

In reply filed on February 2, 2026, Defendant claims that an examination necessarily requires that a

medical professional take the history of a patient relevant to the complaint.

Analyses

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court's decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co.*, (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

With respect to Independent Medical Examinations, pursuant to Cal. Code of Civ. Proc. § 2032.220(a) states, "In any case in which a plaintiff is seeking recovery for personal injuries, any defendant may demand one physical examination of the plaintiff, if both of the following conditions are satisfied: (1) The examination does not include any diagnostic test or procedure that is painful, protracted, or intrusive [and] (2) The examination is conducted at a location within 75 miles of the residence of the examinee.

Cal. Code of Civ. Proc. § 2032.250(a) provides, in relevant part:

"If a defendant who has demanded a physical examination under this article, on receipt of the plaintiff's response to that demand, deems that any modification of the demand, or any refusal to submit to the physical examination is unwarranted, that defendant may move for an order compelling compliance with the demand. This motion shall be accompanied by a meet and confer declaration under Section 2016.040."

Medical History

Plaintiff's objection to Dr. McIntire's examination of Plaintiff, including taking an oral history, is not fully supported by the decisional authority or the Discovery Act. The case law allows an examining professional to take a medical history of the patient that is related to the alleged claim of injuries which resulted from the incident. See *Sharff v. Superior Court* (1955) 44 Cal.2d 508, 511 and *Golfland Entertainment Centers, inc. v. Superior Court* (2003) 108. Cal.App.4th 739, 745-746. This authority applies squarely to this case.

Plaintiff's attempt to characterize a medical doctor's taking of a routine medical history as a deposition under the Discovery Act or as an impermissible communication with a represented party is also not supported by applicable decisional authority. Plaintiff's limited and narrow interpretation as such would result in preventing a trained medical examiner from obtaining facts necessary to perform a reasonable medical examination. Neither the statutes nor the decisional authority prohibits a medical doctor from taking the medical history of plaintiff, especially where Plaintiff makes a claim that he may have suffered neurological injuries from the accident that occurred nearly five years ago. Counsel's argument in support of this position is unavailing. Moreover, the declaration of Dr. McIntire states that if he is prevented from taking a medical history of Plaintiff, it would "limit his ability to formulate an intelligent opinion regarding the nature and extent of Plaintiff's injuries" (Declaration, paragraph 8).

Dr. McIntire also states that "Neurology diagnoses and diagnostic codes are not only based on physical examination findings, but also on the specifics of an examinee's symptoms from a claimed injury, and the evolution of such symptoms. Frequently, such essential medial history, descriptions of symptoms, and chronicles of the evolution of symptoms are not included in existing medical records, discovery responses, or deposition transcripts."

The argument that Cal. Code of Civ. Proc. § 2032.220 does not allow an expert to communicate with a represented party is also without legal support. Plaintiff misinterprets *Golfland, supra*, which allowed the physician to take a medical history that bears on psychiatric and mental matters for an examination. In its holding, the Court of appeal ruled that the trial court was **not** permitted to **limit** the neuropsychologist's questioning of the son's psychiatric condition, and to the extent that the order accomplished this end, it was an abuse of discretion. Under the reasoned opinion of Dr. McIntire and pursuant to the holding in *Golfland*, Plaintiff's objection is **overruled**.

Audio and Videotape of IME

Cal. Code of Civ. Proc. § 2032.510(a) permits the attorney for plaintiff to attend and observe any physical examination and to "record... by audio technology any words spoken to or by the examinee during any phase of the examination." The observer may monitor the examination, but shall not participate in or disrupt it. Section 2032.510(b).

Plaintiff's request to "videotape" the proceedings is inconsistent with the plain wording of Section 2032.510(a), which only permits recording by audio technology or court stenographer. As such, this request is denied. Plaintiff, however, may record the IME provided that he record any and all words spoken to or by the examinee during any phase of the examination pursuant to statute, and so long

as he does not participate or disrupt the examination.

Ruling

Defendant Mario Valencia Madrigal (“Defendant”) Motion to Compel Plaintiff Kyle Gardner (“Plaintiff”) to attend and appear at an Independent Medical Examination (“IME”) with Steven McIntire, MD for a neurological examination is **granted** in part and **denied** in part as set forth herein.

1. Plaintiff’s two objections to the independent medical examination are **overruled**.
2. Plaintiff is ordered to undergo an IME / mental examination with Dr. Steven McIntire, and is ordered to appear at a mutually available date and time no later than thirty days from the date of this order. The examination shall take place in Dr. McIntire’s office and shall be within 75 miles of Plaintiff’s home, and shall continue from day-to-day until complete, and shall not take longer than eight (8) hours over two consecutive days.
3. Dr. McIntire is permitted to take the medical history of Plaintiff, including any history of past neurological or physical injuries that preceded the subject incident and that resulted from the subject incident.
4. Plaintiff’s counsel may be present at the examination in accordance with Section 2032.510(a) and may audio record the entire examination. However, Plaintiff’s counsel may not video record the proceedings and may not interfere with the neurological examination.
5. Counsel shall meet and confer and take necessary and proper steps to implement this order forthwith.
6. Defendant’s counsel is ordered to prepare a proposed order that conforms to the ruling, attaching a copy of this tentative ruling no later than five (5) court days from the date of this hearing.

18. 9:01 AM CASE NUMBER: C23-02118

CASE NAME: LISA MALEK-ZADEH VS. WEST COUNTY WASTEWATER DISTRICT

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER DEPOSITION RESPONSES FROM DEFENDANT WEST COUNTY WASTEWATER DISTRICT**

FILED BY: MALEK-ZADEH, LISA

TENTATIVE RULING:

Summary

Plaintiff Lisa Malek-Zadeh (“Plaintiff”) Motion to Compel Further Deposition Responses from Director Cheryl Sudduth of Defendant West County Wastewater District (“Defendant” or “District”) is **granted** in part as set forth herein.

Background

In this case, Plaintiff alleges that she was employed by the West County Wastewater District, a public agency, from 2016 until March 7, 2023. In early 2018, the District’s Board of Directors appointed Plaintiff as the Interim General Manager until December 2018, when she was hired as the permanent General Manager. Plaintiff then alleges that the Board of Directors had wrongfully terminated her on March 7, 2023.